

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DASHAWN STRONG AS F/N/G OF
JASHAWNA STRONG AN INFANT UNDER
THE AGE OF 7, GEORGIETTE JOHNSON AS
M/N/G OF MARKEM JOHNSON AN INFANT
UNDER THE AGE OF 16 AND GEORGIETTE
JOHNSON INDIVIDUALLY, NAJEA
JACKSON, JACQUELINE JACKSON,
SHAQUAN PARKER, AND VANESSA
STRONG,

Plaintiffs,

~ against ~

Plaintiff designates New York
County as the Place of Trial.
The basis of venue is where
the tort arose

In the vicinity of Amsterdam
Avenue between 174th and 175th
Streets in the City and State of
New York.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, NEW YORK
CITY POLICE OFFICER NIEVES SHIELD #
18144, NEW YORK CITY POLICE OFFICER
FIGUEROA TAX IDENTIFICATION # 946987,
OFFICERS JANE AND JOHN DOE WHO WERE
AT THE SCENE WHOSE NAMES ARE
CURRENTLY UNKNOWN, SGT. IN CHARGE
OF ARREST WHOSE NAME IS UNKNOWN
NAMED HEREIN AS JOHN/JANE DOE I,

Defendants.

SUMMONS

Index No.:

Date Purchased:

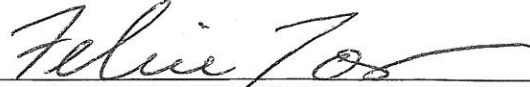
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To The Above Named Defendant:

YOU ARE HEREBY SUMMONED: to answer the Complaint in this action
and to serve a copy of your answer, or, if the Complaint is not served with this Summons,
to serve a Notice of Appearance, on the Plaintiff's Attorney within 20 days after the

service of the Summons, exclusive of the day of service (or within 30 after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Bronx, New York

June 27, 2013



LAW OFFICES OF MORRIS & TORRES, P.C.

Attorneys for Plaintiff

888 Grand Concourse, Ste 1-H

Bronx, New York 10451

(718) 618-7511

Defendant's address:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144

One Police Plaza, Room 1100

New York, New York 10038

NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987

One Police Plaza, Room 1100

New York, New York 10038

SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN
AS JOHN/JANE DOE I

One Police Plaza, Room 1100

New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DASHAWN STRONG AS F/N/G OF JASHAWNA
STRONG AN INFANT UNDER THE AGE OF 7,
GEORGIETTE JOHNSON AS M/N/G OF
MARKEM JOHNSON AN INFANT UNDER THE
AGE OF 16 AND GEORGIETTE JOHNSON
INDIVIDUALLY, NAJEA JACKSON,
JACQUELINE JACKSON, SHAQUAN PARKER,
AND VANESSA STRONG,

Plaintiff,

~ against ~

Index#:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, NEW YORK
CITY POLICE OFFICER NIEVES SHIELD #
18144, NEW YORK CITY POLICE OFFICER
FIGUEROA TAX IDENTIFICATION # 946987,
OFFICERS JANE AND JOHN DOE WHO WERE
AT THE SCENE WHOSE NAMES ARE
CURRENTLY UNKNOWN, SGT. IN CHARGE
OF ARREST WHOSE NAME IS UNKNOWN
NAMED HEREIN AS JOHN/JANE DOE I,

Defendant.

-----X
PLAINTIFFS, by their attorney, FELICE V. TORRES as and for their VERIFIED
COMPLAINT, allege upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff JASHAWNA STRONG was and is a resident of the City and State of New York.
2. At all times mentioned, Plaintiff MARKEM JOHNSON was and is a resident of Bronx County, City and State of New York.

3. At all times mentioned, Plaintiff GEORGIETTE JOHNSON was and is a resident of Bronx County, City and State of New York.

4. At all times mentioned, Plaintiff NAJEA JACKSON was and is a resident of Bronx County, City and State of New York.

5. At all times mentioned, Plaintiff JACQUELINE JACKSON was and is a resident of the City and State of New York.

6. At all times mentioned, Plaintiff SHAQUAN PARKER was and is a resident of Bronx County, City and State of New York.

7. At all times mentioned, Plaintiff VANESSA STRONG was and is a resident of the City and State of New York.

8. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

9. On or about the 23rd day of July 2012 and within ninety (90)days after the claim herein arose, the Plaintiff, JASHAWNA STRONG served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

10. On or about the 23rd day of July 2012 and within ninety (90)days after the claim herein arose, the Plaintiff, MARKEM JOHNSON served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a

copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

11. On or about the 23rd day of July 2012 and within ninety (90)days after the claim herein arose, the Plaintiff, GEORGIETTE JOHNSON served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

12. On or about the 23rd day of July 2012 and within ninety (90)days after the claim herein arose, the Plaintiff, NAJEA JACKSON served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

13. On or about the 23rd day of July 2012 and within ninety (90)days after the claim herein arose, the Plaintiff, JACQUELINE JACKSON served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature,

place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

14. On or about the 23rd day of July 2012 and within ninety (90) days after the claim herein arose, the Plaintiff, SHAQUAN PARKER served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

15. On or about the 23rd day of July 2012 and within ninety (90) days after the claim herein arose, the Plaintiff, VANESSA STRONG served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

16. For all plaintiffs listed above, at least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

17. The Plaintiffs have complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the

Public Authorities Law and said oral examinations were held on September 10, 2012 for Markem Johnson, Georgiette Johnson, Jacqueline Jackson, and Jashawna Strong and on September 11, 2012 for Najea Jackson, Shaquan Parker, and Vanessa Strong.

18. Upon information and belief, at all times mentioned, Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

19. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the Plaintiff JASHAWNA STRONG, in an excessive manner about her person, causing her physical pain and mental suffering. The defendants jointly and severally in their capacity as police officers, caused objects including but not limited to a table and a pole to fall on the plaintiff and injure her. At no time did the Defendants have legal cause to grab, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

20. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed,

handcuffed and seized the Plaintiff MARKEM JOHNSON, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

21. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the Plaintiff GEORGIETTE JOHNSON, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

22. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the Plaintiff NAJEA JACKSON, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

23. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the Plaintiff JACQUELINE JACKSON, in an excessive manner about her person, causing her physical pain and mental suffering. The defendants jointly and severally in

their capacity as police officers, caused objects including but not limited to a table and a pole to fall on the plaintiff and injure her. At no time did the Defendants have legal cause to grab, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

24. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff SHAQUAN PARKER, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

25. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, and seized the Plaintiff VANESSA STRONG, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

26. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "25" with full force and effect as though set forth at length herein.

27. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff JASHAWNA STRONG in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

28. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff MARKEM JOHNSON in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

29. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff GEORGIETTE JOHNSON in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

30. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the

Defendants, jointly and severally did place Plaintiff NAJEA JACKSON in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

31. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff JACQUELINE JACKSON in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

32. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff SHAQUAN PARKER in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

33. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally did place Plaintiff VANESSA STRONG in imminent fear of physical contact by approaching the Plaintiff with loaded firearms, outstretched

limbs, and other objects which they used to physically seize and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

MARKEM JOHNSON

34. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "33" with full force and effect as though set forth at length herein.

35. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx and there charged him with the crimes on DOCKET No. D-36381-12. The Plaintiff was thereafter held in custody over the course of two (2) days before he was released on his own recognizance after arraignment. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

SHAQUAN PARKER

36. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "35" with full force and effect as though set forth at length herein.

37. On or about May 27, 2012 at approximately 11 p.m. in the vicinity of Amsterdam Avenue between 174th and 175th Street in the City and State of New York, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty and then took her into custody to a police station in the County of the Bronx and there charged her with the crimes under SUMMONS #s 433709026-5 and 433709028-9. The Plaintiff was thereafter held in custody over the course of two (2) hours before she was released. The Defendants intentionally confined the Plaintiff without her consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of her confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

JASHAWNA STRONG

38. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "37" as it set forth at length herein.

39. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

40. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

41. Plaintiff JASHAWNA STRONG is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

42. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

43. On or about May 27, 2012 the Defendants, armed police, did assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically cause the plaintiff pain and injury in an unlawful and excessive manner.

44. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from the use of excessive force.

45. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

46. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

MARKEM JOHNSON

47. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "46" as it set forth at length herein.

48. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

49. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

50. Plaintiff MARKEM JOHNSON is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

51. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

52. On or about May 27, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff MARKEM JOHNSON, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the

plaintiff was subjected to a warrantless strip search with cavity inspection even though the defendants did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on his person.

53. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

54. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

55. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

GEORGIETTE JOHNSON

56. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "55" as it set forth at length herein.

57. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE

NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

58. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

59. Plaintiff GEORGIETTE JOHNSON is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

60. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

61. On or about May 27, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff GEORGIETTE JOHNSON, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff in an unlawful and excessive manner.

62. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from the use of excessive force.

63. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

64. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

NAJEA JACKSON

65. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "64" as it set forth at length herein.

66. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

67. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

68. Plaintiff NAJEA JACKSON is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

69. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

70. On or about May 27, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff NAJEA JACKSON, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff in an unlawful and excessive manner.

71. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from the use of excessive force.

72. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

73. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

JACQUELINE JACKSON

74. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "73" as it set forth at length herein.

75. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

76. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

77. Plaintiff JACQUELINE JACKSON is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

78. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

79. On or about May 27, 2012 the Defendants, armed police, did assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically cause the plaintiff pain and injury in an unlawful and excessive manner.

80. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;

c. Freedom from the use of excessive force.

81. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

82. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

SHAQUAN PARKER

83. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "82" as it set forth at length herein.

84. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

85. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

86. Plaintiff SHAQUAN PARKER is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

87. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

88. On or about May 27, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff SHAQUAN PARKER, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so. Further, the plaintiff was subjected to a warrantless strip search with cavity inspection even though the defendants did not possess a reasonable and/or probable cause to believe that the plaintiff had secreted contraband in or on his person.

89. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

90. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

91. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

VANESSA STRONG

92. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "91" as it set forth at length herein.

93. Defendants NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN, SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

94. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

95. Plaintiff VANESSA STRONG is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

96. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

97. On or about May 27, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff VANESSA STRONG, did seize, assault and commit a battery and

grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff in an unlawful and excessive manner.

98. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from the use of excessive force.

99. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

100. The direct and proximate result of the Defendants' acts is that the Plaintiff has suffered severe and permanent injuries of a psychological nature. She was forced to endure pain and suffering, all to her detriment.

AS AND FOR A FIFTH CAUSE OF ACTION

101. Plaintiffs incorporate, repeat and re-allege all of the allegations contained in Paragraphs "1" through "100" with full force and effect as though set forth at length herein.

102. Defendant CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and

has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

103. The City of New York was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiffs here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

104. THE CITY OF NEW YORK is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before individuals such as the Plaintiffs herein can be arrested.
2. Excessive force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
4. Individuals such as the plaintiffs herein cannot be subjected to a strip search with cavity inspection unless the police possess legal cause and/or have a reasonable suspicion and/or probable cause that the plaintiffs have secreted contraband in or on their persons.

105. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiffs, commit an assault/battery to their persons, and denied them prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SIXTH CAUSE OF ACTION

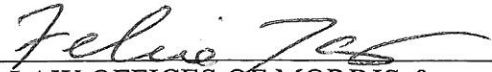
106. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "105" as it set forth at length herein.

107. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officers Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY OF NEW YORK and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bronx, New York
June 27, 2013

Yours etc.,



LAW OFFICES OF MORRIS &
TORRES, P.C.

Attorneys for Plaintiff

888 Grand Concourse, Ste 1-H

Bronx, New York 10451

(718) 618-7511

TO:

CORPORATION COUNSEL OF THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144

One Police Plaza, Room 1100

New York, New York 10038

NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987

One Police Plaza, Room 1100

New York, New York 10038

SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN
AS JOHN/JANE DOE I

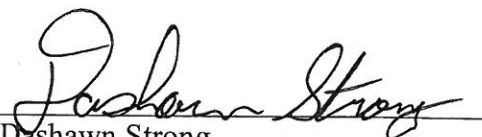
One Police Plaza, Room 1100

New York, New York 10038

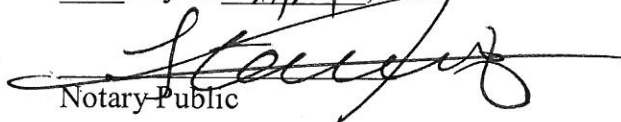
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Dashawn Strong, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


Dashawn Strong

Sworn to before me on this
16 day of April, 2013

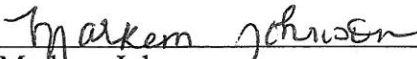

Notary Public

hong Tae Joon
Notary Public, State of New York
Qualified in New York County
Reg No 01HO6183878
My Commission Expires 11/11/2016

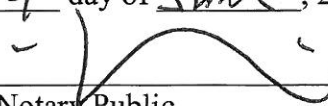
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Markem Johnson, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


Markem Johnson

Sworn to before me on this
4 day of June, 2013

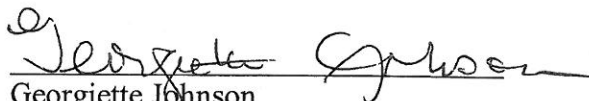

Notary Public

WILLIAM BARRIOS
Notary Public, State of New York
Registration #01BA6131383
Qualified In Bronx County
Commission Expires Aug 1, 2013

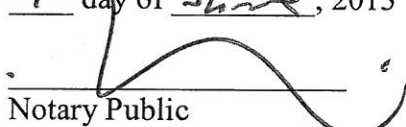
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Georgiette Johnson, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


Georgiette Johnson

Sworn to before me on this
4 day of June, 2013


Notary Public

WILLIAM BARRIOS
Notary Public, State of New York
Registration #01BA6131383
Qualified In Bronx County
Commission Expires Aug 1, 2013

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Najea Jackson, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.

Najea Jackson
Najea Jackson

Sworn to before me on this
6th day of May, 2013

William Barrios
Notary Public

WILLIAM BARRIOS
Notary Public, State of New York
Registration #01BA6131383
Qualified In Bronx County
Commission Expires Aug 1, 2013

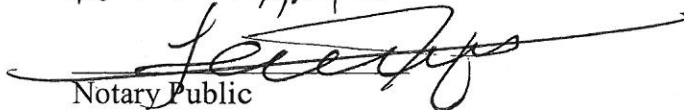
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Jacqueline Jackson, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


Jacqueline Jackson

Sworn to before me on this
16 day of April, 2013

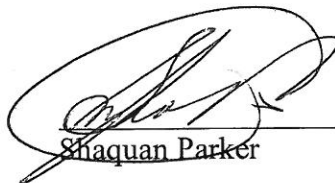

Notary Public

Hong Tae Joon
Notary Public, State of New York
Qualified in New York County
Reg No 01HO6103878
My Commission Expires 1/1/2016

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Shaquan Parker, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.



Shaquan Parker

Sworn to before me on this
11th day of June, 2013



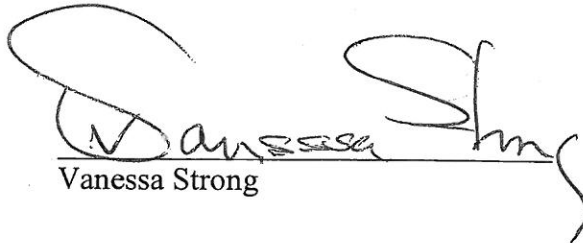
Notary Public

Felice V. Torres
Notary Public, State of New York
No.02TO6125297
Qualified in Bronx County
Commission Expires April 11, 2017.

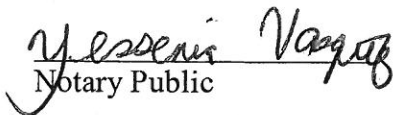
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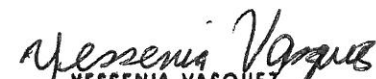
STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

Vanessa Strong, being duly sworn deposes and says that the deponent is the Plaintiff in the within action; that deponent has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same are true to deponents own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes them to be true.


Vanessa Strong

Sworn to before me on this
17th day of June, 2013


Notary Public


Yessenia Vasquez
NOTARY PUBLIC-STATE OF NEW YORK NYC
No. 01VA6158008 6/17/13
Qualified in New York County
My Commission Expires December 18, 2014

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DASHAWN STRONG AS F/N/G OF JASHAWNA STRONG AN INFANT UNDER
THE AGE OF 7, GEORGIETTE JOHNSON AS M/N/G OF MARKEM JOHNSON AN
INFANT UNDER THE AGE OF 16 AND GEORGIETTE JOHNSON
INDIVIDUALLY, NAJEA JACKSON, JACQUELINE JACKSON, SHAQUAN
PARKER, AND VANESSA STRONG,

Plaintiff,

~ against ~

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICER NIEVES SHIELD #
18144, NEW YORK CITY POLICE OFFICER FIGUEROA TAX
IDENTIFICATION # 946987, OFFICERS JANE AND JOHN DOE WHO
WERE AT THE SCENE WHOSE NAMES ARE CURRENTLY UNKNOWN,
SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED
HEREIN AS JOHN/JANE DOE I,

Defendant.

SUMMONS AND VERIFIED COMPLAINT
LAW OFFICES OF MORRIS & TORRES, P.C.
Attorneys-at-Law

Attorney for Plaintiff
888 Grand Concourse, Suite 1-H
Bronx, New York 10451
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(718) 618-7515 (Fax)

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE OFFICER NIEVES SHIELD # 18144
One Police Plaza, Room 1100
New York, New York 10038

NEW YORK CITY POLICE OFFICER FIGUEROA TAX IDENTIFICATION # 946987
One Police Plaza, Room 1100
New York, New York 10038

SGT. IN CHARGE OF ARREST WHOSE NAME IS UNKNOWN NAMED HEREIN AS JOHN/JANE DOE I
One Police Plaza, Room 1100
New York, New York 10038